

**Sixty-ninth Legislative Assembly of North Dakota  
In Regular Session Commencing Tuesday, January 7, 2025**

SENATE BILL NO. 2230  
(Senators Myrdal, Hogue, Meyer)  
(Representatives McLeod, Rohr)

AN ACT to create and enact a new section to chapter 16.1-01 of the North Dakota Century Code, relating to the secretary of state's duty to distribute educational and informational materials before an election; to provide an appropriation; and to provide an expiration date.

**BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:**

**SECTION 1.** A new section to chapter 16.1-01 of the North Dakota Century Code is created and enacted as follows:

**Secretary of state to distribute information to qualified electors regarding ballot measures.**

1. For each statewide constitutional measure approved by the legislative assembly, initiated measure, or referendum appearing on the ballot of a special, primary, or general election, the secretary of state shall create and distribute objective and factual educational materials to each individual listed as "active voter" in the central voter file not less than forty-five days before the election at which the question will be voted upon. Materials created under this subsection also must be posted at all voting locations.
2. The materials created and distributed under subsection 1 must contain:
  - a. An objective summary of the measure;
  - b. The anticipated fiscal impact of the measure;
  - c. Whether the measure was approved by the legislative assembly or originated as an initiative or referred petition; and
  - d. An objective analysis of a vote in favor and a vote opposed.

**SECTION 2. APPROPRIATION - SECRETARY OF STATE - BALLOT MEASURE EDUCATIONAL MATERIALS - ONE-TIME FUNDING.** There is appropriated out of any moneys in the general fund in the state treasury, not otherwise appropriated, the sum of \$600,000, or so much of the sum as may be necessary, to the secretary of state for the purpose of creating and distributing objective and factual educational materials focusing on the accuracy, fairness, and readability of measures placed on a statewide election ballot as provided in section 1 of this Act, for the biennium beginning July 1, 2025, and ending June 30, 2027. The funding in this section is considered a one-time funding item.

**SECTION 3. EXPIRATION DATE.** This Act is effective through June 30, 2027, and after that date is ineffective.

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President of the Senate

\_\_\_\_\_  
Speaker of the House

\_\_\_\_\_  
Secretary of the Senate

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Chief Clerk of the House

This certifies that the within bill originated in the Senate of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as Senate Bill No. 2230.

Senate Vote:    Yeas 46            Nays 1            Absent 0

House Vote:    Yeas 87            Nays 5            Absent 2

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Secretary of the Senate

Received by the Governor at \_\_\_\_\_ M. on \_\_\_\_\_, 2025.

Approved at \_\_\_\_\_ M. on \_\_\_\_\_, 2025.

\_\_\_\_\_  
Governor

Filed in this office this \_\_\_\_\_ day of \_\_\_\_\_, 2025,

at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

\_\_\_\_\_  
Secretary of State